
Appeal Decision

Site visit made on 9 September 2026

by **B Pattison BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6012481

Well Hill Nursery, Fountain Farm, Firmingers Road, Orpington, Kent BR6 7QH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr N Hyselli against the decision of Sevenoaks District Council.
 - The application Ref is 26/00213/OUT.
 - The development proposed is Erection of residential development.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026, Government published a revised National Planning Policy Framework (the Framework). This included revisions to policies that are pertinent to the appeal, such as those relating to development in the Green Belt. During the appeal the main parties were invited to comment on the relevance of the revised Framework to the appeal proposal. In my decision, I have had regard to the written responses.
3. The application was made in outline with all matters reserved. I have therefore dealt with the appeal on this basis. The application was accompanied by an indicative plan showing a suggested layout, which I shall treat as being for illustrative purposes only.

Main Issues

4. The main issues are:
 - whether or not the proposal would be inappropriate development within the Green Belt having regard to the Framework and any other relevant development plan policies;
 - the effect of the proposal on the openness of the Green Belt;
 - the effect of the proposal on protected species;
 - the effect of the proposal on highway safety;
 - whether the future occupiers of the proposal would have acceptable living conditions, with particular reference to noise; and
 - if the appeal scheme is found to be inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly

outweighed by other considerations so as to amount to the very special circumstances needed to justify the development.

Reasons

Whether or not inappropriate development

5. The appeal site is an open grass field. Access is via a gated entrance from Firmingers Road onto a shared access, providing access to Fountain Farm and a gypsy traveller site located to the south of the site. Adjacent to the site, but within the appellant's ownership is a small cluster of buildings, some of which are in commercial use. To the north, two bungalows at The Nursery adjoin the boundary with this additional land in the appellant's ownership. The M25 motorway runs along the appeal site's eastern boundary.
6. The appeal site is located in the Metropolitan Green Belt. Chapter 13 of the Framework identifies that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential characteristics of Green Belts are their openness and their permanence. Policy GB6.2. of the Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
7. Policy GB7 of the Framework sets out certain exceptions where development in the Green Belt is not inappropriate development. The appellant argues that Policy GB7.1.e. of the Framework is of relevance to the appeal. This identifies the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt, as an exception which would not be inappropriate development.
8. I note that, in determining a previous appeal¹ at Fountain Farm, the Inspector found that the proposal would be on previously developed land (PDL). However, the appeal decision makes clear that this conclusion related to the land occupied by the cluster of existing buildings on the appellant's adjoining land, rather than the appeal site before me.
9. The Framework defines PDL as that which has been lawfully developed and is or was occupied by a permanent structure and any fixed surface infrastructure associated with it, including the curtilage of the developed land (although it should not be assumed that the whole of the curtilage should be developed). The appeal site is a grass field which does not have any built form within it. The existence of PDL adjacent to the appeal site does not automatically make the whole site PDL.
10. Consequently, based on the evidence before me, I do not find that the appeal site accords with the definition of PDL within the Framework. The proposal does not fall within any of the categories of development which are not inappropriate development outlined within Policy GB7.1 of the Framework.

Grey Belt

11. The Framework defines 'grey belt' as land in the Green Belt comprising previously developed land and/or any other land that, in either case, does not strongly

¹ PINS Ref: APP/G2245/C/22/3310954

contribute to any of purposes (a), (b), or (d) in policy GB2. The main parties agree that the appeal site can be considered 'grey belt' land.

12. Under Policy GB7.g of the Framework, development should not be regarded as inappropriate in the Green Belt if four criteria are met. The main parties agree that the proposal complies with criteria GB7.g.i and GB7.g.ii and that criteria GB7.g.iv does not apply.
13. Criteria GB7.g.iii requires that the development would be in a sustainable location with particular reference to Policy TR3 of the Framework. Policy TR3 requires development to be located where it can support sustainable patterns of movement, enable good accessibility for different users and make the most of existing and proposed transport infrastructure. It also requires that the Governments' Connectivity Tool is used to assess the connectivity of locations proposed for development.
14. The Council indicates, and it is not disputed by the appellant, that the appeal site scores poorly on the Connectivity Tool as a result of its low accessibility and connectivity to surrounding services and transport routes. The appeal site is not located within any defined settlement, and the submitted evidence indicates that the closest nearby settlement of Well Hill has few services or community facilities. This is therefore unlikely to meet the day-to-day needs of future occupiers, who would likely need to travel further afield for essential goods and services.
15. The submitted evidence indicates that there is no easily accessible public transport. The absence of street lighting, dedicated footpaths, and cycle lanes on the surrounding local, rural roads significantly reduces their suitability for walking or cycling, particularly outside daylight hours or in poor weather conditions. Therefore, essential services, facilities and employment opportunities would not be readily accessible from the appeal site without the use of a private car.
16. I acknowledge that the existing commercial use on the adjoining site already generates trips, often by larger vehicles. However, I have not been provided any evidence setting out the number of employees, work patterns and vehicular activities associated with the business. Regardless, on this matter, I conclude that the development would not be in a sustainable location, having regard to Policy TR3 of the Framework and the limited opportunities available to maximise sustainable transport solutions.
17. In summary, although the appeal site is grey belt land, the proposal conflicts with criteria GB7.g.iii of the Framework. Consequently, the proposal is inappropriate development in the Green Belt.

Openness

18. The essential characteristics of Green Belts are their openness and their permanence. Openness has both a visual and spatial dimension.
19. The proposal would introduce upto six residential dwellings onto the site. Whilst the scale and layout would be determined as part of future reserved matters applications, an indicative volume for the proposal's built form of 1,600 cubic metres has been provided. The proposal would introduce significant built form into a space where currently there is no development, thereby eroding open space. This would have a substantial harmful effect on spatial openness.

20. The dense hedgerow to the appeal site would provide some visual screening of the proposal. However, the dwellings would be visible in views through the gated vehicular access to the site. As a result, the appeal site's existing open character would be visually eroded. This would have a substantial harmful effect on visual openness.
21. Therefore, I conclude that the proposal would not preserve, and would have a harmful effect on, the openness of the Green Belt. Given the likely scale of the proposal, I consider the harm to openness to be substantial. As such, the proposal would conflict with the provisions within the Framework which seek to preserve the openness of the Green Belt.

Protected species

22. The appellant's Preliminary Ecological Appraisal and Roost Assessment has been produced following a site survey which includes a habitat classification. It includes a description of the habitats on the site and provides comments on the likelihood of protected and priority species being present on the land.
23. In relation to the presence of Great Crested Newts (GCN), the PEA indicates that there are no ponds on the appeal site, however aerial images indicate the presence of five ponds within 500 metres. When combined with the on-site habitat, the PEA confirms that the development produces an Amber risk score.
24. The appellant indicates that works would be undertaken within the GCN breeding season, when they are likely to be within the ponds off-site. Clearance works would not take place during the typical hibernation period between October and February when amphibians are more vulnerable to injury or death. A number of other measures are proposed, including the installation of amphibian exclusion fencing around the construction area prior to the commencement of any construction works to ensure that GCN and other common amphibians cannot enter the working area.
25. GCN are a European Protected Species (EPS) protected by the Regulations² and a precautionary approach should be taken. Circular 06/2005³ states that it is essential that the presence or otherwise of protected species, and the extent that they may be affected by development, is established before planning permission is granted otherwise all relevant material considerations may not have been addressed in making the decision.
26. Given the presence of waterbodies within 500m and that no specific survey for GCN has been undertaken, I cannot be satisfied that GCN's are not present in the area and I am unable to make an informed decision about the effect of the proposal on the protected species, including assessing whether any mitigation measures would adequately safeguard against any harm.
27. The PEA states that reptile surveys will be required to determine the presence or likely absence of reptiles on the site, and that surveys are likely to be required before planning permission can be granted. The submitted evidence does not include a reptile survey. In relation to reptiles, I am unable to make an informed decision about the effect of the proposal on the protected species, including

² Conservation of Habitats and Species Regulations 2017 and the Wildlife and Countryside Act 1981 (as amended).

³ Paragraph 99 of ODPM Circular 06/2005

assessing whether any mitigation measures would adequately safeguard against any harm.

28. In relation to bats, the appellant indicates that the buildings to the north of the appeal site would be demolished to compensate for the proposed dwellings. The PEA confirms that this demolition has the potential to have a detrimental impact on bats and recommends that further surveys should be carried out. This would include bat emergence/re-entry surveys for some of the buildings to confirm the presence or absence of roosting bats. Such surveys have not been provided. For this reason, the appellant's evidence does not sufficiently demonstrate that there would be no impacts on bats overall.
29. The additional surveys relating to GCN, bats and reptiles cannot be secured by planning conditions, as this approach would not comply with guidance set out within the Circular. The need to ensure that ecological surveys are carried out should only be left to coverage under planning conditions in exceptional circumstances. No such circumstances have been demonstrated in this case and it is therefore a reasonable expectation that the surveys be carried out prior to any grant of planning permission.
30. Consequently, I have insufficient information to assess the extent of the impact on GCN, bats or reptiles. I therefore cannot determine that it would not lead to significant harm. As such, I must take a precautionary approach and find the proposal would conflict with Policy N2 of the Framework which states that if significant harm to biodiversity resulting from a development cannot be avoided, adequately mitigated, or, as a last resort, compensated for, then the development should be refused. Without details of measures to avoid, mitigate or compensate for adverse effects, the proposal conflicts with Policy SP11 of the Sevenoaks Core Strategy (2011) which requires proposals to enhance habitats and protect on-site biodiversity.

Noise

31. In determining the previous appeal at the adjoining site, the Inspector referred to background noise from the M25, when assessing the effects of a proposal on the living conditions of nearby existing residential occupiers. Nonetheless, the submitted Noise Assessment with this appeal indicates that road traffic from the M25 motorway is such that acoustic mitigation would be necessary.
32. The Noise Assessment indicates that the noise levels within the external areas would be above the recommendations of British Standard BS8233:2014. In the absence of any substantive evidence to demonstrate otherwise, this is likely to have a harmful effect on the living conditions of future occupiers.
33. I acknowledge that there are different approaches to developing the site, and that further details for the mitigation of noise may be provided through future Reserved Matters Applications. The Noise Assessment indicates that a variety of acoustic mitigation measures could be used to achieve satisfactory internal noise levels. However, the submitted Noise Assessment does not provide details of the equipment used to undertake the noise measurements, nor does it include the full measurement data underpinning the assessment. Furthermore, the report does not provide confirmation of the author's qualifications related to the assessment of noise and acoustic design or whether they are a member of the Institute of Acoustics or a similar organisation. Without knowledge of the equipment used, the

full acoustic measurements data or qualifications of the report author, it is not possible to confidently ascertain that future occupiers would be sufficiently protected from noise from the M25.

34. For these reasons, I find that the proposal would not comply with Policies EN2 and EN7 of the Sevenoaks Allocations and Development Management Plan (2015) (SADMP) insofar as they require that proposals provide adequate residential amenities, and would not have an unacceptable effect on the indoor and outdoor acoustic environments for future occupiers. There would also be conflict Policy P3 of the Framework which requires proposals to provide healthy living conditions whilst avoiding exposure to noise.

Highway safety

35. Article 5(3) of the Town and Country Planning (Development Management Procedure) (England) Order 2015 states that “where access is a reserved matter, the application for outline planning permission must state the area or areas where access points to the development proposed will be situated”. The submitted evidence indicates that the proposal would use the existing point of access at the junction of Firmingers Road and Rock Hill.
36. I acknowledge that in determining the previous appeal the Inspector did not find any harm to highway safety. However, it seems to me that the introduction of upto six residential dwellings, with resultant comings and goings from occupiers and visitors is likely to see an intensification in the use of the access. In coming to this view, I have taken into account that the proposal could come forward following the removal of the existing buildings within the blue line area on the site location plan, thereby seeing a reduction in commercial vehicles.
37. However, the access is narrow and close to a junction. The adjacent hedgerow is above driver eye height and there are limited visibility splays. Visibility for drivers of vehicles exiting the appeal site is therefore poor. There are no proposals to improve visibility and I consider that this could not be addressed by condition given the potential impacts on the adjacent hedgerow, and as the Council indicate that the future provision of visibility splays may encroach on land outside of the ownership of the appellant.
38. I conclude that the proposal has failed to demonstrate that a safe and suitable access to serve the development could be achieved so as to avoid a detrimental impact upon highway safety. The proposal would conflict with Policy EN1 of the SADMP and Policy TR6.4 of the Framework insofar as they require that development proposals should ensure satisfactory means of access for vehicles and should be refused if they have an unacceptable impact on highways safety.

Other considerations

39. The appellant states that buildings located to the north of the appeal site, which are also within the appellant’s ownership, would be removed to offset the proposed dwellings. It is suggested that this would result in an overall reduction in the impact of built development on the openness of the Green Belt.
40. In the absence of agreed reserved matters, I cannot be certain of the exact layout and scale of the dwellings. However, the appellant indicates that the proposed dwellings would be two storeys and would have an indicative volume of 1,600

cubic metres which would match the volume of the existing buildings to be removed. I understand that 600 square metres of hardstanding within the site would be removed. However, it seems to me that the siting of the proposed buildings, on an open grass area close to the vehicular access onto the Firminger Road, is likely to result in highly visible new built form. Indeed, they would likely be more visible in views from the public domain than the existing buildings. Whilst the submitted layout is indicative, it seems likely that the dwellings would be spaced out across the width of the appeal site. Furthermore, the separate residential curtilages would also result in the introduction of domestic paraphernalia for multiple households.

41. For these reasons, whilst I note the reduction in hardstanding at the site, even in the event that the existing buildings were removed, I do not consider that the proposal would have a beneficial effect on the spatial or visual openness of the Green Belt. For this reason, this factor does not weigh in favour of the proposal.

Other Matters

42. The Council acknowledge that a five year supply of housing land is not in place. The appellant indicates that the latest figure is 2.96 years supply which is a significant shortfall. The proposal would contribute upto six dwellings towards addressing that shortfall and would also contribute to the delivery of housing on small sites, which can generally be delivered quickly. Nevertheless, the positive effect on housing land supply would be small. Furthermore, the lack of realistic alternatives to travel by car moderates the benefit arising from additional housing in this particular location, having regard to policies in the Framework for directing development to sustainable locations.
43. The appellant indicates that Sevenoaks District has major policy constraints, including the Green Belt, National Landscape, and areas subject to flooding. Whilst suitable housing land within the borough may be constrained, as I have found that the proposal would be inappropriate development in the Green Belt, I do not afford this weight.
44. The removal of the commercial buildings would end noise from lorries undertaking deliveries which are reported to cause adverse impacts to the local residents. This would be beneficial to local residents and I afford this moderate weight.
45. The appeal proposal would create employment, and support growth during the construction period albeit for a limited time. Future occupiers could boost the spending power of the local economy, and would also help support services in the surrounding area. In this instance I attach limited weight to it given the actual level of benefit has not been evidenced and would be limited by the low level of additional dwellings proposed. The development would be liable for the Community Infrastructure Levy, contributing towards new and improved local facilities, open space, and vital services to mitigate the effects of the increase in homes in the area. Future occupiers would also pay Council tax. This matter is a benefit to which I attribute limited weight.
46. The appellant indicates that the proposal would not result in the loss of best and most versatile agricultural land and would not result in the loss of any Areas of Great Landscape Value. It has been suggested that the addition of dwellings is not considered to have a detrimental impact on the capacity of local services such as GPs and schools, and the appeal scheme does not give rise to any further

conflicts with the policies of SADMP. The proposal could provide policy compliant cycle and car parking. However, these matters are of neutral consequence to my assessment.

47. The proposal would not result in the net loss of important landscape features such as trees, hedgerows or other fauna and flora. However, given my findings in relation to likely further requirements for visibility splays this is not a factor which I afford more than limited weight.
48. The new dwellings would be well-insulated with renewable energy provision, with measures such as solar panels or air-source heat pumps, to ensure reduced carbon dioxide emissions. Given the scale of the development, I afford this factor limited weight.
49. The appellant indicates that the dwellings would be self-build. Planning Practice Guidance recognises that self-build custom housing helps to diversify the housing market and increase customer choice. The Framework accordingly includes a range of measures designed to boost the supply of such housing.
50. However, at the application stage and as part of the appeal there was no planning obligation or other mechanism to secure a means of ensuring the proposal would be constructed for such use. There is therefore no mechanism to ensure that the proposal would be a self-build housing. As such, I have to assess the proposal as market housing.

Planning Balance and Conclusion

51. The proposal would be inappropriate development in the Green Belt which is, by definition, harmful. There is also harm to the Green Belt due to the effect on openness. Substantial weight should be given to the harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm is clearly outweighed by other considerations.
52. The benefits as presented to me are worthy of some positive weight, but this would be limited overall. Against this, I must give the harm to the Green Belt by way of inappropriateness substantial weight as per policy GB6 of the Framework. While the removal of the adjoining cluster of buildings could reduce the overall effect, I have still found that the proposal would result in a loss of openness. This is also afforded substantial weight as per policy GB6 of the Framework. Consequently, the considerations advanced by the appellant, even when considered together, do not clearly outweigh the totality of the harm. The very special circumstances necessary to justify the development therefore do not exist.
53. Additionally, given the lack of information available, I am unable to rule out harm to GCN, bats and reptiles which are protected species. This conflicts with Policy N2 of the Framework. I attach substantial weight to these harms. Furthermore, I cannot rule out an adverse impact on the living conditions of proposed occupiers as a result of the proximity of the appeal site to the M25 motorway. Collectively, these harms are substantial and bring the scheme into conflict with the decision-making policies of the Framework taken as a whole, an important material consideration. Consequently, the benefits do not outweigh the conflict with the development plan, or those contained within the Framework.
54. Therefore, for the reasons given above the appeal should be dismissed.

B Pattison

INSPECTOR